

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

W.P.No. 19044 of 2018

Mst. Salma Kausar.

Vs.

Anayat Ali, etc.

<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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24.12.2018.

Mr. Atif Mushtaq Bhutta, Advocate for petitioner.

Through this constitutional petition, the petitioner has challenged the order dated 30.11.2018 passed by learned Addl. District Judge, Muzaffargarh, whereby the application filed by the petitioner for permission to lead additional evidence by referring the matter to expert for comparison of thumb impression of respondent No. 1 with the ones available on original mutation No. 648 dated 16.06.2005 has been declined.

2. Learned counsel for the petitioner has stated that the afore-referred additional evidence relating to comparison of thumb impression was required for just decision of the case and the said application has not rightly been refused.

3. Heard. Record perused.

4. The petitioner has filed the application for additional evidence seeking comparison of thumb impressions of the respondent No. 1 with thumb impressions available on mutation No. 648 for the first time before the appellate court, which has been declined

by the said court. The order 41 Rule 27 of the C.P.C provides that the appellate court may allow a party to lead additional evidence in case request for producing such evidence was made before the trial court but the said court did not allow the same or the said evidence was required to be received on the record by the court for just decision of the matter. In the present case, the appellate court while adjudicating upon the application for permission to lead additional evidence has observed that the petitioner neither averred in her written statement for comparison of the thumb impression of the plaintiff/respondent No.1 with the thumb impression over the impugned mutation nor during the trial she made any request. The appellate court has also not required the said evidence to be produced in evidence to enable it to pronounce judgment and no substantial cause has been pleaded by the petitioner to produce such evidence at the appellate stage. Grounds provided under Order 41 Rule 27 of the C.P.C have not been established. Allowing or disallowing the said application was discretionary with the appellate court and discretion exercised by the court of competent jurisdiction cannot be called in question at this stage in constitutional jurisdiction of this Court when the main appeal is still pending before the said court and no illegality or violation of any law has been pointed out in

the impugned order. The petitioner must wait for the decision of the final appeal before calling in question the order dated 30.11.2018 passed by the appellate court refusing to allow additional evidence along with any final challengeable order passed against the petitioner. At this stage, this petition is premature and consequently **dismissed**.

(Muzamil Akhtar Shabir)
Judge